Constitution of Auckland University Student Chamber Orchestra Incorporated

.

Adopted 8 October 2024

Last Edited 30 December 2025

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CONSTITUTION OF AUCKLAND UNIVERSITY STUDENT CHAMBER ORCHESTRA INCORPORATED

PART ONE – INTRODUCTORY RULES

1. NAME AND REGISTERED OFFICE

1.1. The name of the society is Auckland University Student Chamber Orchestra Incorporated (in this Constitution referred to as the **"Society"**).

1.2. The registered office of the Society will be at such place in New Zealand as the Executive may determine from time to time.

2. DEFINITIONS AND INTERPRETATION

2.1. In this Constitution, unless the context requires otherwise, the following words and phrases have the following meanings:

"Act" means the Incorporated Societies Act 2022.

"Advisor" means the General Executive Member appointed as Advisor by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Advisor by the Executive should a vacancy in the role occur.

"Annual General Meeting" means a meeting of the Members of the Society held once per year which, among other things, will receive and consider reports on the Society's activities and finances.

"Annual subscription" means a one-off yearly fee set by the Executive under clause 6.5, paid by each Member as a prerequisite to membership and their entitlement to all rights and privileges of membership.

"Bylaws" means the bylaws of the Society, as constituted or amended from time to time by the Executive under clause 26.

"Chairperson" means the Officer appointed by the Executive as Chairperson under clause 14.3.

"Complaint" has the meaning given to it by clauses 15.6(a) or 22.1, depending on the nature of the Complaint.

"Conductor" means the person appointed to that position under clause 12.10, responsible for the matters specifically noted in this Constitution.

"Constitution" means this constitution, as amended from time to time.

"Code of Conduct" means the code of conduct of the Society, as approved or amended by the Executive from time to time.

"Designer" means the General Executive Member appointed as Designer by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Designer by the Executive should a vacancy in the role occur.

"Dispute" has the meaning given to it by clause 22.4.

"Disputes Panel" means a panel appointed by the Executive under clause 22.4.

"Eligible Person" is a person who meets the criteria in clause 15.1.

"Events Coordinator" means the General Executive Member appointed as Events Coordinator by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Events Coordinator by the Executive should a vacancy in the role occur.

"Executive" means the Executive of the Society and comprises those Officers and General Executive Members described in clause 12.3.

“Executive Meeting” means a meeting of the Executive set out in clause 14.

"Financial Member" is a Member who is not an Unfinancial Member.

“General Executive Member” means a Member elected to a position listed at clause 12.3(b).

"General Meeting" means either an Annual General Meeting or a Special General Meeting of the Members of the Society.

"Interested Executive Member" means a member of the Executive who is interested in a matter for any of the reasons set out in section 62 of the Act.

"Interests Register" means the register of interests of Officers, kept under this Constitution and as required by section 73 of the Act.

"Marketing Officer" means the General Executive Member appointed as Marketing Officer by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Advisor by the Executive should a vacancy in the role occur.

"Matter" means:

(a) the Society's performance of its activities or exercise of its powers; or

(b) an arrangement, agreement, or contract (a transaction) made or entered into, or proposed to be entered into, by the Society.

"Media Officer" means the General Executive Member appointed as Media Officer by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Media Officer by the Executive should a vacancy in the role occur.

"Member" means a person who has consented to become a Member of the Society and has been properly admitted to the Society, who has not ceased to be a Member of the Society.

"No Confidence Panel" means a panel appointed by the Executive under clause 15.6(f).

"Notice" to Members includes any notice given by email, post, or courier.

"Officer" has the meaning given to it under section 5(1) of the Act and includes Members elected to the positions listed at clause 12.3(a).

"Ordinary Resolution" means a resolution of the Society that is approved by a simple majority (50%) of the votes of those Members entitled to vote and voting on the question.

The Officer or Executive whose Term will be ending at the conclusion of the upcoming Annual General Meeting will be regarded as **"Outgoing"**.

"Presidency" means the collective composition of the President and Vice President following clause 12.4(d).

"President" means the Officer appointed as President by Ordinary Resolution at a General Meeting, or any Officer appointed as President by the Executive should a vacancy in the role occur.

"Proxy" means a person appointed by a Member to act as their proxy in respect of a General Meeting under clause 10.

"Proxy Form" means the form published by the Executive that enables Members to appoint a Proxy.

"Public Relations Officer" means the General Executive Member appointed as Public Relations Officer by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Public Relations Officer by the Executive should a vacancy in the role occur.

"Ranked Voting" means the procedure for voting as described in clause 9.5(g).

"Register of Members" means the register of Members kept under this Constitution as required by section 79 of the Act.

"Registered Officer" has the meaning given to it in clause 15.3.

"Returning Officer" means a person appointed under clause 9.8.

"Secretary" means the Officer appointed as Secretary by Ordinary Resolution at a General Meeting, or any Officer appointed as Secretary by the Executive should a vacancy in the role occur.

"Senior Advisor" means the General Executive Member appointed as Senior Advisor by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Senior Advisor by the Executive should a vacancy in the role occur.

"Signatories" has the meaning given to it in clause 20.3.

"Society" means Auckland University Student Chamber Orchestra Incorporated.

"Special General Meeting" means a meeting of the Members, other than an Annual General Meeting, called for a specific purpose or purposes.

"Special Resolution" means a resolution of the Society that is approved by a 75% majority of the votes of those Members entitled to vote and presently voting on the question.

"Student Group" means a club, society or association that is affiliated with, and recognised by, the University of Auckland.

"Student Support" means the ancillary role of Student Support appointed to a member of the Executive by Ordinary Resolution at the first Executive Meeting of the year, or the ancillary role of Student Support appointed to a member of the Executive by the Executive should a vacancy in the role occur.

"Subcommittee" means a subcommittee established by the Executive under clause 19.

"Term" means the term of an Officer or General Executive Member set out in clause 12.2.

"Treasurer" means the Officer appointed as Treasurer by Ordinary Resolution at a General Meeting, or any Officer appointed as Treasurer by the Executive should a vacancy in the role occur.

"Unfinancial Member" has the meaning given to it in clause 6.6.

"Vice President" means the General Executive Member appointed as Vice President by Ordinary Resolution at a General Meeting, or any General Executive Member appointed as Vice President by the Executive should a vacancy in the role occur.

"Working Days" has the meaning given to it in the Legislation Act 2019. Examples of days that are not Working Days include, but are not limited to, the following — a Saturday, a Sunday, Waitangi Day, Good Friday, Easter Monday, ANZAC Day, the Sovereign's birthday, Te Rā Aro ki a Matariki/Matariki Observance Day, and Labour Day.

2.2. **Interpretation**: In this Constitution, unless the context otherwise requires or specifically states otherwise:

(a) the table of contents, headings and descriptions relating to sections of the Act, are inserted for convenience only and must be ignored in construing this Constitution;

(b) the singular includes the plural and vice versa;

(c) reference to a statute or other law includes regulations, rules, orders and other instruments under it and consolidations, amendments, re-enactments or replacements of any of them (whether before or after the date of adoption of this Constitution);

(d) "written" and "in writing" include any means of reproducing words, figures and symbols in a tangible and visible form;

(e) words and expressions defined or explained in the Act (unless expressly defined or explained in this Constitution) have the same meaning in this Constitution;

(f) any word or expression equivalent with a definition in this Constitution has a meaning corresponding or construed to that definition; and

(g) references to clauses and sub-clauses are references to clauses and sub-clauses in this Constitution, unless stated otherwise.

2.3. This Constitution has no effect to the extent that it contravenes the Act, or is inconsistent with it, provided that if there is any conflict between:

(a) a provision in this Constitution and a provision in the Act which is expressly permitted to be altered by this Constitution; or

(b) a word or expression defined or explained in the Act and a word or expression defined or explained in this Constitution,

the provision, word or expression in this Constitution prevails.

3. PURPOSE OF THE SOCIETY

3.1. The Society is established and maintained exclusively for charitable purposes (including any purposes ancillary to those charitable purposes), including:

(a) to foster and encourage the musical passions of amateur and aspiring professional musicians and conductors who are, in particular, but not limited to, students or alumni of any faculty of the University of Auckland and to foster and promote their study, practice and performance of orchestral and chamber works.

(b) to advance education of the public in orchestral and chamber music performance and composition through recitals, concerts and other such performances.

(c) to foster a wider community of playing and sharing orchestral music in a social and enjoyable environment.

3.2. The purposes above will be attained by the Executive working to provide the environment and resources for students to perform and socialise.

3.3. The Society shall be empowered to do all legal things which are incidental to and necessary for the attainment of the purposes of the Society.

3.4. Any property, income, benefit, or advantage must be used to advance the charitable purposes of the Society, provided that it is not for the sole, personal or individual benefit of any Member.

3.5. The President and/or Vice President shall be the Society's appointed contact person in accordance with the Act.

4. FORMATION

4.1. The Society is formed from, and is an extension of, the Student Group known as AUSCO and will continue to have this status so long as AUSCO remains recognised by the University of Auckland as a Student Group.

4.2. The requirements for recognition by the University of Auckland are found on page 4 of the 2025 Clubs Handbook. The University of Auckland may change these requirements from time to time.

4.3. The existence of the Society does not undermine the existence of the Student Group known as AUSCO.

4.4. All property, bank accounts, assets and income owned, managed or incurred by the Student Group known as AUSCO became jointly owned, managed or incurred by the Society at the date of the Society's incorporation.

5. INCLUSIVITY AND SOCIAL POLICY

5.1. The Society believes that all students have the right to equal access to, participation in and enjoyment of student life. As part of that, the Society strives to create an environment in which Members feel safe and accepted, and are treated fairly and with dignity and respect, regardless of, but not limited to, sexual orientation, gender identity, age, and personal background.

5.2. The Society will not tolerate any exclusionary, bigoted or discriminatory behaviour from its Members. Any instances of such behaviour will result in appropriate disciplinary action towards that Member.

PART TWO – MEMBERSHIP

6. MEMBERS

6.1. The Society shall maintain a Register of Members comprising no fewer than 45 individuals, each of whom must hold a valid University of Auckland student identification number. For all Members in excess of the minimum 45, at least 80% shall be currently enrolled students at the University of Auckland.

6.2. Membership shall be open to any person who wishes to further the interests of the Society.

6.3. Any person seeking membership shall:

(a) complete and sign an application form (whether hard copy or electronic), providing any relevant information as reasonably required by the Executive; and

(b) consent in writing to becoming a Member.

6.4. Each Member shall:

(a) provide the information set out in clause 18.1 and promptly advise the Executive in writing of any changes to those details;

(b) comply with this Constitution and the Society's Code of Conduct and Bylaws;

(c) pay any fees and subscriptions as may be fixed by the Society or levied by the Executive; and

(d) be entitled to all rights and privileges of membership (including attending and voting at General Meetings, accessing or using the Society's premises, facilities, equipment and other property, and participating in Society activities).

6.5. The Annual Subscription and any other fees for membership for the then current financial year must be set by the Executive at a date no later than 1 March each year.

6.6. Any Member who fails to pay an Annual Subscription or any other subscription prescribed by the Executive, before a date determined by the Executive and without waiver of payment by the Executive shall be considered an "Unfinancial Member" and

have no membership rights and privileges (without being released from the obligation of payment) including, but not limited to, those described in clause 6.4(d).

6.7. From time to time the Executive may:

(a) impose additional levies on Members for participation in events as determined by the Executive; and

(b) use its discretion to waive or reduce any fees for any Member of the Society.

7. CESSATION OF MEMBERSHIP

7.1. Membership of the Society will terminate automatically on the first day on which subscriptions are called for in the following year, unless a further subscription is paid.

7.2. Membership will otherwise cease –

(a) upon receipt by the Executive of written Notice that the Member wishes membership to cease;

(b) on termination of that Member's membership following a dispute resolution process under this Constitution;

(c) upon death; or

(d) by resolution of the Executive providing that the Executive may only remove a Member if –

(i) the Member has failed to pay a subscription, levy or other amount due to the Society within two calendar months of the due date for payment; or

(ii) it is determined that the Member has been in breach of the Code of Conduct.

with effect from (as applicable) –

(e) the date of receipt of the Member's Notice of resignation by the Executive (or any subsequent date stated in the Notice of resignation);

(f) the date of termination of the Member's membership;

(g) the date of death of the Member; or

(h) the date specified in a resolution of the Executive, provided that when a Member's membership has been terminated the Executive must promptly notify the former Member in writing.

7.3. The person who has ceased to be a Member under this Constitution –

(a) remains liable to pay all subscriptions and other fees charged or outstanding at the time their membership ends;

(b) will cease to hold themselves out as a Member of the Society;

(c) will return to the Society all property provided to Members by the Society; and

(d) will cease to be entitled to any of the rights and privileges of a Society Member.

7.4. If a former Member's membership was terminated following a disciplinary or dispute resolution process the applicant may be re-admitted as a Member only by a resolution passed at a General Meeting on the recommendation of the Executive.

PART THREE – GENERAL MEETINGS

8. GENERAL MEETINGS

8.1. The Annual General Meeting of the Society must be held each year within the final month of Semester two at the University of Auckland, at a location determined by the Executive, and shall be chaired by a Chairperson appointed under clause 9.6.

8.2. The business of the Annual General Meeting must include:

(a) confirmation of the minutes of the previous General Meetings;

(b) receipt of the Society's annual report and the financial statements for the Society's previous accounting period;

(c) the election of the Executive listed under clause 12.3; and

(d) consideration of any motions validly proposed by the Executive or a Member.

8.3. The Executive must, at each Annual General Meeting, present the following information:

(a) an annual report of the affairs of the Society during the most recently completed accounting period;

(b) the financial statements of the Society for that period;

(c) Notice of any disclosures of conflicts of interest made by the Executive during that period (including a brief summary of the matters, or types of matters, to which those disclosures relate); and

(d) any other matters required by the Act.

8.4. The Executive may resolve to call a Special General Meeting at any time, at a date and location fixed by the Executive.

8.5. The Executive must, within 15 Working Days, call a Special General Meeting upon receipt of a written request signed by the greater of 30 per cent of current Financial Members or five Financial Members.

8.6. Notice of a Special General Meeting shall clearly set out the business for which the meeting has been called. No other business shall be dealt with at that Special General Meeting.

9. PROCEDURE AT GENERAL MEETINGS

9.1. The Executive must give all Members Notice of any General Meeting no less than 10 Working Days prior to its date. The General Meeting and its business will not be invalidated simply because one or more Members did not receive Notice.

9.2. Quorum at a General Meeting shall be:

(a) for the Annual General Meeting, at minimum, the lesser of 20 Financial Members, or 50% of the Society's membership.

(b) for a Special General Meeting, a minimum of 10 Financial Members.

9.3. If within half an hour after the time appointed for a General Meeting a quorum is not present the General Meeting will be adjourned to a day, time and place determined by the Executive, and if at such adjourned meeting a quorum is not present those Financial Members present will be deemed to constitute a sufficient quorum.

9.4. General Meetings may be held at one or more venues using any real-time audio, audio and visual, or electronic communication that provides each Financial Member a reasonable opportunity to participate.

9.5. Voting:

(a) All Financial Members may attend, speak and vote at General Meetings:

(i) in person; or

(ii) by a validly appointed Proxy.

(b) On any given motion at a General Meeting, except the election of the Presidency, the Chairperson shall in good faith determine whether to vote by:

(i) voices;

(ii) show of hands; or

(iii) secret ballot.

(c) For the avoidance of doubt a secret ballot may be held with physical ballot paper or with an approved electronic alternative, provided there is the same or reasonably similar degree of anonymity in both forms, and must contain:

(i) a list of all valid nominations in alphabetical order; and

(ii) a category of "no vote".

(d) Each Financial Member shall have one vote on each matter at a General Meeting and may exercise this vote by proxy following clause 10.

(e) At the Annual General Meeting the singular vote of a member of the Outgoing Executive in the election of the Presidency shall be summed, counted as two votes, and unable to be split between two nominees.

(f) In the election of the Presidency, where there are collectively more than two nominees, three individuals shall be appointed between the two positions. The voting for these positions, and the resulting format as described in clause 12.4(d), shall be decided in the following manner:

(i) All nominees will be collectively grouped in a single pool for Ranked Voting. This enables all eligible voters a better chance to express their preferences in leadership across both interdependent roles, recognising individual merit.

(ii) At the conclusion of Ranked Voting the top three nominees shall digress to decide amongst themselves their preferred format for the three positions, agreeing upon:

A. which combination from clause 12.4(d) would be chosen; and

B. who would be placed in what position.

(iii) This preferred format shall then be presented to the General Meeting to be voted on as the Chairperson sees fit.

(iv) If such a format is rejected at a vote the nominees shall reconvene and present a new format until one is accepted.

(g) For the purposes of electing the Presidency Ranked Voting[1] shall proceed as follows:

(i) A list of valid nominations, in alphabetical order, will be provided on a secret ballot to each Financial Member present at the election.

(ii) Each Financial Member eligible to vote shall:

A. rank each nominee from one (1) to "*x*" where *x* = the total number of nominees. One (1) shall represent a preference for the nominee to take the highest position in leadership (typically the President), and *x* represents the lowest (typically a Vice President); or

B. vote under the category of "no vote", where there shall be no ranking presented for any candidate.

[1] Ranked Voting is intended to operate a modified Borda Count methodology.

(iii) Notwithstanding a "no vote", each rank must be filled by a single nominee.

(iv) At the conclusion of voting each nominee shall have their ranks tallied. For example, if nominee *y* received from one Member a rank of 2 out of 4, and from another Member a rank of 1 out of 4, their overall score shall be 3 plus the ranks given by all other Members. The three nominees with the lowest overall scores shall be provisionally nominated to the Presidency and begin discussions following clause 9.5(f)(ii).

(v) In a vote by a member of the Outgoing Executive, accounting for clause 9.5(e), each numerical rank shall first be multiplied by two and then tallied under clause 9.5(g)(iv) in order to count as two votes.

(h) For the avoidance of doubt, a vote for the purposes of clauses 9.5(d) and (e) shall include a vote of the kind described in clause 9.5(g).

(i) Unless otherwise required by this Constitution, all motions at a General Meeting must be decided by Ordinary Resolution.

(j) The Chairperson of the General Meeting, with assistance from the Returning Officer (as required), will determine whether any motion has passed.

9.6. All General Meetings will be chaired by the President or a member of the Executive appointed by those of the Executive present. If the Executive is absent from the meeting the meeting must elect a Member to chair the meeting. A person chairing a General Meeting will not have a casting vote.

9.7. A person chairing a General Meeting may:

(a) be assisted by the Returning Officer where appropriate and practicable;

(b) with consent of the General Meeting, adjourn the General Meeting from time to time and from place to place, but no business may be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place;

(c) direct that any person not entitled to be present at the meeting, obstructing the business of the meeting, behaving in a disorderly manner, being

abusive or failing to abide by the directions of the Chairperson be removed from the General Meeting; or

(d) in the absence of a quorum or in the case of emergency, adjourn the meeting or declare it closed.

9.8. Prior to the publishing of a Proxy Form the Executive shall, with a 75% affirmative vote, appoint at least one Returning Officer. The Returning Officer is not required to be a Member and must not be a nominee running for the Executive at that General Meeting. The role of the Returning Officer(s) is:

(a) to supervise the counting of any votes cast by secret ballot and assist in determining whether such a motion has passed; and

(b) to determine the results of the election of the Executive; and

(c) to receive completed Proxy Forms and determine whether a Proxy has been validly appointed by a Member; and

(d) to be available to be appointed as a Proxy by the Members, and vote in accordance with all received instructions; and

(e) to assist the President(s) and Vice President(s) with a vote of No Confidence as described in clause 15.6.

10. APPOINTMENT OF PROXIES

10.1. The Executive must publish a Proxy Form to enable Members to appoint a Proxy in relation to any General Meeting at least 5 Working Days before the General Meeting. The Proxy Form must enable the appointee to instruct their Proxy how to cast their vote on any motion.

10.2. Only another Member or the Returning Officer may be appointed as a Proxy.

10.3. If a Member has appointed the Returning Officer as their Proxy and the Member has not instructed the Returning Officer how to vote on a particular motion, the Returning Officer must abstain from voting for their appointee on that motion.

10.4. Members must deliver completed Proxy Forms to the Returning Officer, who will determine whether a Proxy has been validly appointed by the Member. Proxy Forms must be received at least 2 Working Days before the General Meeting.

11. RESOLUTION IN LIEU OF MEETING

11.1. A written resolution may be passed in lieu of a Special General Meeting if that resolution is approved by no less than 75% of the number of Members who are entitled to vote.

PART FOUR – MANAGEMENT

12. EXECUTIVE

12.1. From the conclusion of an Annual General Meeting until the end of the next, the Society shall be managed by, or under the direction or supervision of, the Executive.

12.2. The Term of the Executive shall begin at the conclusion of the Annual General Meeting in which the Executive was elected, or at the conclusion of a Special General Meeting called for the purpose of electing one or more members of the Executive, and shall end at the conclusion of the subsequent Annual General Meeting.

12.3. The Executive comprises –

(a) a minimum of three Officers including:

(i) the President; and

(ii) the Secretary; and

(iii) the Treasurer; and

(b) any of the following General Executive Members:

(i) the Vice President;

(ii) the Marketing Officer;

(iii) the Media Officer;

(iv) the Public Relations Officer;

(v) the Events Coordinator;

(vi) the Designer;

(vii) the Advisor; or

(viii) the Senior Advisor.

12.4. A maximum of two Members may be elected to each position on the Executive, excepting:

(a) the position of Senior Advisor which may be held by a maximum of four Members;

(b) the position of Secretary which may only be held by one Member;

(c) the position of Advisor, whose vacancies (including having no vacancies) shall be agreed upon prior to an AGM by the outgoing President(s), Vice President(s) and, where practicable, Senior Advisor(s); and

(d) the positions of President and Vice President (the Presidency) which shall comprise –

(i) one President only; or

(ii) one President and one Vice President; or

(iii) two Presidents; or

(iv) one President and two Vice Presidents; or

(v) two Presidents and one Vice President,

the format of which shall be decided at the General Meeting.

12.5. Clause 12.4(d) does not apply after 14 November 2025. Instead, a maximum of four Members may be elected to the Presidency.

12.6. Prior to the opening of nominations for the election of the Executive the Outgoing Executive shall determine the number of vacancies for each position, with regard to clause 12.4(c), and include this in their Notice to Members under clause 15.5(a).

12.7. No person shall hold more than one position on the Executive at any one time excepting:

(a) a circumstance where one or more position has no nominations, in which case a person may be elected to their nominated position and the position with no nominations, up to a maximum of two positions; and

(b) a vacancy in the Executive by removal under clause 15.7, in which case an existing member of the Executive may be appointed to fill that vacancy until the next General Meeting.

12.8. The role of a Senior Advisor shall be open only to Members who have held a minimum of two Terms as different members of the Executive, except the position of Advisor, or have previously been President or Vice President of the Society for a minimum of one Term.

12.9. The Executive at its first Executive Meeting of the year shall appoint one of its members to also carry the ancillary role of Student Support.

12.10. The Executive shall appoint a Conductor, either by direct invitation or open allocation. The Conductor will be an ex officio member of the Executive and will be entitled to receive Notice of and speak at Executive and General Meetings but will have no voting rights.

12.11. The Presidency and, where practicable, Senior Advisor(s), who are Outgoing at an Annual General Meeting, may nominate a Member, with their consent, to the position of Advisor at a General Meeting. Such an Advisor, or multiple Advisors, shall:

(a) assist with the specific tasks and duties of any one member of the Executive, not including the office of the Presidency and Senior Advisor(s) which shall not receive an appointed Advisor;

(b) have previously held the office for which they will be an Advisor to;

(c) have the same rights and duties as any other General Executive Member; and

(d) be voted into the position in the same manner as any General Executive Member.

13. POWERS OF THE EXECUTIVE

13.1. The Executive has all the powers necessary for managing, and for directing and supervising the management of, the operations and affairs of the Society, subject to

such modifications, exceptions or limitations as are contained in the Act or in this Constitution.

14. EXECUTIVE MEETINGS

14.1. The quorum for Executive Meetings is half the number of members of the Executive, including the Conductor and Advisor, plus one. An Executive Meeting may be held –

(a) by a number of Executive members who constitute a quorum, being assembled together at the place, date and time appointed for the meeting; or

(b) though an audio, or audio and visual, communication medium by which all Executive members participating and constituting a quorum can simultaneously hear each other throughout the meeting; or

(c) as a mix of both mediums in (a) and (b) whereby each individual Executive member present comprises the quorum.

14.2. A resolution is passed at any Executive Meeting as an Ordinary Resolution requiring a simple majority of affirmative votes. Every member of the Executive shall have one vote.

14.3. The President shall act as Chairperson of the Executive. In their absence the Executive present may choose one of their number to chair the meeting. The Chairperson has a casting vote in the event of a tied vote on any resolution of the Executive.

14.4. Any two Executive members may call an Executive Meeting. The Secretary or a nominee shall document each Executive Meeting in the form of minutes which shall be made accessible to all Members. Except as otherwise provided in this Constitution, the Executive may regulate its own procedure.

14.5. The Executive shall meet as required at such times and places and in such reasonable manner as it may determine.

15. OFFICERS AND GENERAL EXECUTIVE MEMBERS

15.1. Every Officer and General Executive Member must be an Eligible Person. An Eligible Person is a person who:

(a) is a natural person;

(b) has consented in writing to being an Officer or a General Executive Member of the Society;

(c) certifies that they are not disqualified from being elected or appointed or otherwise holding office as an Officer or General Executive Member of the Society; and

(d) is not disqualified under section 47(3) of the Act.

15.2. At all times each Officer or General Executive Member –

(a) shall act in good faith and in what he or she believes to be the best interests of the Society;

(b) must exercise all powers for a proper purpose;

(c) must not act, or agree to the Society acting, in a manner that contravenes the Act or this Constitution;

(d) when exercising powers or performing duties as an Officer or General Executive Member, must exercise the care and diligence that a reasonable person with the same responsibilities would exercise in the same circumstances considering, but without limitation,

(i) the nature of the Society;

(ii) the nature of the decision; and

(iii) the position of the Officer or General Executive Member and the nature of the responsibilities undertaken by them;

(e) must not agree to the activities of the Society being carried on in a manner likely to create a substantial risk of serious loss to the Society or to the Society's creditors, or cause or allow the activities of the Society to be

carried on in a manner likely to create a substantial risk of serious loss to the Society or to the Society's creditors; and

(f) must not agree to the Society incurring an obligation unless he or she believes at that time on reasonable grounds that the Society will be able to perform the obligation when it is required to do so.

15.3. A current and duly appointed Officer will be a Registered Officer, meaning they will be added to the Society's list of Officers on the Incorporated Societies Register.

15.4. Officers and General Executive Members shall be elected at an Annual General Meeting. Officers or General Executive Members may also be elected at a Special General Meeting called for that purpose if one or more vacancies appear. An election of this kind must follow the same procedures under clauses 15.5 and 15.6.

15.5. The election of Officers and General Executive Members shall be conducted as follows:

(a) At least 10 Working Days before the date of the General Meeting the Executive shall give Notice to all Members by posting or emailing to them the opening of nominations for Executive roles, Notice of which must include:

(i) the number of vacancies for each position; and

(ii) the nomination form.

(b) Only nominations with prior approval from the nominee shall be accepted.

(c) Only nominees who are not disqualified from being appointed or holding office as an Officer or General Executive Member (as described in clause 15.1) may stand for election.

(d) 5 Working Days before the date of the General Meeting the Executive must:

(i) publish the list of received nominees; and

(ii) publish the Proxy Form and all related procedures.

(e) A nominee may provide the Presidency a written request to modify or remove that nominee's nomination after the list of nominees is published. The Presidency has discretion to allow the request.

(f) The Returning Officer shall, after publication of the list of nominees, receive and reasonably investigate any written and signed receipt of "No Confidence" brought by any Member against any nominee.

(g) If insufficient nominations are received to fill all vacancies further nominations may be received from the floor at the General Meeting.

(h) Votes shall be cast in such a manner as the Chairperson of the General Meeting shall determine following clause 9.5(b).

(i) The Returning Officer will act as a scrutineer for the counting of the votes and destruction of any voting papers.

(j) If a vote is tied the tie shall be resolved by a casting vote of the Outgoing President, or by a Simple Majority of the Outgoing Presidency if there are three individuals across both positions.

(k) Any such appointee must, before appointment, supply a signed consent to appointment and a certificate that the nominee is not disqualified from being appointed or holding office as an Officer or General Executive Member (as described in clause 15.1).

15.6. An investigation into a receipt of No Confidence must proceed in the following manner:

(a) A receipt of No Confidence may be received by the Returning Officer from any Member and must be treated as a "Complaint" for the purpose of raising a dispute against a nominee. This No Confidence must be lodged in respect of that nominee's capability to perform the general tasks and duties of the Executive position for which he or she is nominated for.

(b) Written Notice of this Complaint must be provided to the Executive on the basis that it is anonymised for the duration of the investigation, except between the Returning Officer, Presidency and the Member making the Complaint, where practicable.

(c) A Complaint founded upon a receipt of No Confidence shall not initiate a disciplinary procedure unless the circumstances allege misconduct or

contravention of the Constitution or the Bylaws. Such a Complaint will follow the dispute resolution procedures under clause 22.

(d) Where appropriate and practicable the Returning Officer and Presidency may decide not to proceed with a Complaint if:

(i) the matter is trivial;

(ii) the matter does not appear to disclose any –

A. misconduct;

B. incapability of the nominee to perform the general tasks and duties of the Executive position for which he or she is nominated for;

C. breach of the Constitution or Bylaws; or

D. damage to that nominee's rights or interests;

(iii) the Complaint is without foundation or there is no apparent evidence to support it;

(iv) the person who has made the Complaint has an insignificant interest in the matter;

(v) the conduct, incident or issue has already been dealt with and investigated on behalf of the Society; or

(vi) there has been undue delay in making the Complaint.

and that decision will be final and binding on the parties.

(e) In the case that the affected nominee is a President, Vice President or Returning Officer this person shall be removed from the No Confidence dispute procedure.

(f) If the Complaint is to proceed it will be heard by a "No Confidence Panel" comprising the Returning Officer and Presidency unless clause 15.6(e) applies. No person may be appointed to the No Confidence Panel if there are reasonable grounds to suspect a conflict of interest.

(g) The No Confidence Panel must actively engage with both the nominee in question and the Member who raised the Complaint, not necessarily together, when conducting the hearing and determination of the Complaint in accordance with the Act.

(h) The outcome of the No Confidence Panel shall recommend all reasonable resolutions that promote what they believe to be the best interests of the Society in accordance with natural justice and any minimum requirements imposed by the Act. The Bylaws may further provide for this procedure.

(i) After receiving the proposed resolution(s) the Executive shall determine whether to approve a proposed resolution or not following the procedure described in clause 22.6.

(j) The Executive may delegate the approval of any resolution proposed by the No Confidence Panel to a Subcommittee, or any other person, and the decision to approve or reject a recommendation will be final and binding as if made by the Executive under clause 22.6, provided that the Executive may not delegate to any person or group of people if there are reasonable grounds to believe that a decision maker may not be impartial or able to consider the matter without a predetermined view.

15.7. A member of the Executive shall be removed from office immediately if that person –

(a) is no longer an Eligible Person under clause 15.1;

(b) provides written Notice to the Executive of their resignation;

(c) is removed by resolution of the Executive; or

(d) is no longer able to perform their functions of office.

15.8. Each member of the Executive shall, within 10 Working Days of submitting a resignation or ceasing to hold office, deliver to the Executive all books, papers and other property of the Society held by such former member of the Executive.

16. CONFLICTS OF INTEREST

16.1. A member of the Executive who is an Interested Executive Member in respect of any Matter being considered by the Society must disclose details of the nature and extent of the interest (including any monetary value of the interest if it can be quantified) as

soon as practicable after the member becomes aware that they are interested in the Matter –

(a) to the Executive; and

(b) in an Interests Register kept by the Executive

16.2. A member of the Executive who is an Interested Executive Member regarding a Matter:

(a) must not vote or take part in the decision of the Executive relating to the Matter unless all members of the Executive who are not interested in the Matter consent; and

(b) must not sign any document relating to the entry into a transaction or the initiation of the Matter unless all members of the Executive who are not interested in the Matter consent; but

(c) may take part in any discussion of the Executive relating to the Matter and be present at the time of the decision of the Executive (unless the Executive decides otherwise).

16.3. A member of the Executive who is prevented from voting on a Matter may nevertheless be counted in a quorum at any meeting at which the Matter is considered.

16.4. Where 50 per cent or more of members of the Executive are prevented from voting on a Matter because they are interested in that Matter a Special General Meeting must be called to consider and determine the Matter.

17. CONDUCTOR

17.1. The Executive has the power to remove or suspend the Conductor, subject to any agreed contract between the Society and Conductor.

17.2. The Conductor may not be a Member of the Society.

18. RECORDS

18.1. The Executive must ensure that the Register of Members is securely maintained, accurate, and regularly updated in order to comply with all applicable University of Auckland policies and the Official Recognition Principle, recording for each Member:

(a) their full name;

(b) their contact details, including:

(i) their email address; and

(ii) their phone number;

(c) the date on which they became a Member; and

(d) their UPI (if applicable) and Student ID number (if applicable).

18.2. Every current Member shall promptly advise the Society of any change to the Member's contact details.

18.3. The Executive shall at all times maintain an up-to-date register of the interests disclosed by members of the Executive.

19. SUBCOMMITTEES

19.1. The Executive may establish one or more Subcommittees on any basis that the Executive determines. The Executive may disestablish a Subcommittee at any time.

19.2. The Executive may appoint or remove Subcommittee members by resolution.

19.3. Each Subcommittee will report to, and be under the supervision of, the Executive.

19.4. No Subcommittee may, without express approval of the Executive –

(a) commit the Society to any financial expenditure or bind the Society to any legal obligation; or

(b) further delegate any of its powers.

20. FINANCES

20.1. The funds and property of the Society shall be –

(a) controlled, raised and disposed of by the Executive, subject to this Constitution; and

(b) devoted solely to the promotion of the purposes of the Society.

20.2. The Executive shall maintain bank accounts in the name of the Society. All money received on the account of the Society shall be banked within 20 Working Days of receipt. All accounts paid or for payment shall be submitted to the Executive for approval of payment. All payments shall be authorised by the Signatories.

20.3. Only the Signatories may access and control any bank accounts maintained in the name of the Society. The Signatories shall be:

(a) any one person in the position of Treasurer, and

(b) any one person in the position of:

(i) President; or

(ii) Secretary; and

(c) a Registered Officer for that position.

20.4. The Executive must ensure that there are accounting records kept at all times that –

(a) correctly record the transactions of the Society; and

(b) can be made available to Members upon request; and

(c) allow the Society to produce financial statements that comply with the requirements of the Act; and

(d) are kept in written form or an easily accessible and readable electronic medium for the current accounting period and for the last 7 completed accounting periods of the Society; and

(e) would enable the financial statements to be readily and properly audited (if required under any Act of Parliament).

20.5. The Executive must establish and maintain a satisfactory system of control of the Society's accounting records.

20.6. The Executive must reimburse Members for expenses incurred by them, provided that these have received the prior approval of the Executive and that a reimbursement request has been submitted within 28 Working Days of incurring the expense.

20.7. The Executive shall only have the power to borrow money with prior approval at a General Meeting.

20.8. The Society's financial year shall commence on the 1st July of each year and end on the 30th June (the latter date being the Society's balance date).

21. PRIVATE PECUNIARY PROFIT

21.1. As a not-for-profit Society, the Officers, General Executive Members and Members may not receive any distributions of profit or income from it. This does not prevent Officers, General Executive Members or Members –

(a) receiving reimbursement of actual and reasonable expenses incurred, or

(b) entering into any transactions with the Society for goods or services supplied to or from them, which are at arms length, relative to what would occur between unrelated parties.

provided no Officer, General Executive Member or Member is allowed to influence any such decision made by the Society in respect of payments or transactions between it and them, their direct family or any associated entity.

22. DISPUTE RESOLUTION

22.1. Any Member or member of the Executive may raise a dispute, grievance or complaint against another Member, Officer, General Executive Member, the Executive or the Society, in respect of that Member's involvement in the Society's activities by providing written Notice to the Executive ("Complaint").

22.2. The Executive may decide not to proceed with a Complaint if:

(a) the matter is trivial;

(b) the matter does not appear to disclose any misconduct, breach of the Constitution or Bylaws or damage to that Member's rights or interests;

(c) the Complaint is without foundation or there is no apparent evidence to support it;

(d) the person who has made the Complaint has an insignificant interest in the matter;

(e) the conduct, incident or issue has already been dealt with and investigated on behalf of the Society; or

(f) there has been undue delay in making the Complaint,

and that decision will be final and binding on the parties.

22.3. The Executive may initiate a disciplinary procedure against a Member regarding alleged misconduct or contravention of the Constitution or the Bylaws.

22.4. Upon receipt of a Complaint from a Member or following the initiation of a disciplinary procedure (each a "Dispute"), the Executive will appoint three persons to form a Disputes Panel to hear the matter and propose a resolution to the Executive. No person may be appointed to the Disputes Panel if there are reasonable grounds to suspect a conflict of interest in the Matter.

22.5. The Disputes Panel must conduct the hearing and determination of the Dispute in accordance with the Act, including conducting the hearing in accordance with the principles of natural justice and any minimum requirements imposed by Schedule 2 of the Act. The Bylaws may further provide for the dispute resolution procedure.

22.6. After receiving the proposed resolution from the Disputes Panel, or in the case of a receipt of No Confidence, from the No Confidence Panel, the Executive will determine at an Executive Meeting whether to approve the proposed resolution or not.

(a) If there are reasonable grounds to believe that a member of the Executive may have a conflict of interest in the Matter, that person must be excluded from voting on the proposed resolution, however, they may be included among the members of the Executive present at the meeting for the purposes of a quorum.

(b) If a majority of the Executive are excluded from voting on a proposed resolution under clause 22.6(a), the Executive must either:

(i) call a Special General Meeting for the purposes of voting to approve or reject the proposed resolution; or

(ii) delegate the decision to approve the recommendation to a Subcommittee or any other person under clause 22.7.

(c) The decision of the Executive or a Special General Meeting to approve or reject a recommendation from the relevant Panel is final and will not be subject to further review under clause 22.

22.7. The Executive may delegate the approval of any resolution proposed by the Disputes Panel to a Subcommittee, or any other person, and the decision to approve or reject a recommendation will be final and binding as if made by the Executive under clause 22.6.

22.8. Clause 22.7 does not apply if there are reasonable grounds to believe that any person or group of people delegated to the Subcommittee may have a conflict of interest in the Matter.

22.9. Nothing in this Constitution will affect a person's right to pursue alternate dispute resolution remedies.

23. LIQUIDATION AND REMOVAL FROM THE REGISTER

23.1. The Society shall comply with all relevant sections of the Act regarding liquidation and removal from the register.

24. SURPLUS ASSETS

24.1. On winding up or dissolution of the organisation any surplus funds or assets shall not be paid or distributed to any Members or individuals but shall be:

(a) applied to a purpose in line with the Society's objects, or

(b) given or transferred to another not-for-profit organisation or a Society or Student Group with the same or similar charitable purposes as this Society.

25. ALTERATIONS TO THE CONSTITUTION

25.1. All amendments must be made in accordance with this Constitution. Any minor or technical amendments shall be notified to Members as outlined in section 31 of the

Act.

25.2. The Society may amend or replace this Constitution at a General Meeting, by Special Resolution or by a resolution passed in lieu of a meeting subject to this Constitution.

25.3. No addition to, deletion from or alteration of the Society's rules shall be made which would allow personal pecuniary profits to any individuals.

25.4. Any proposed resolution to amend or replace this Constitution must be:

(a) signed by the greater of 30 per cent of current Financial Members or five Financial Members and given in writing; or

(b) approved by the Executive.

25.5. At least 10 Working Days before the General Meeting at which any amendment is to be considered the Executive shall give to all Members:

(a) Notice of the proposed resolution;

(b) the reasons for the proposal; and

(c) any recommendations the Executive have in relation to the proposal.

25.6. When an amendment is approved by the General Meeting it shall be notified to the Registrar of Incorporated Societies in the form and manner specified in the Act for registration and shall take effect from the date of registration.

25.7. If following replacement or amendment of the Act this Constitution is no longer consistent with the Act the Executive may, by unanimous resolution, amend this Constitution to the extent required to make it consistent with the Act.

26. BYLAWS AND CODE OF CONDUCT

26.1. The Executive from time to time may make and amend Bylaws, a Code of Conduct and policies for the conduct and control of Society activities, applicable to the Society. However, no such Bylaws, policies or Code of Conduct applicable to Members shall be inconsistent with this Constitution, the Act, regulations made under the Act, or any other legislation.